JOINT RESOLUTION

of the participants in the public expert meeting concerning Draft Law No. 15057 on the need to eliminate a legal inconsistency and ensure equal state protection of children with disabilities regardless of their parents' status

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Unofficial English translation

We, the participants of the public expert meeting on Draft Law No. 15057, representatives of the human rights, legal, medical, rehabilitation, psychiatric, social, expert, civil society and parent communities, having considered the legal, practical and humanitarian problem related to the current regulation of the grounds for discharging from military service those service members who are raising a child with a disability under the age of 18, consider it necessary to publicly record a joint position in support of Draft Law No. 15057 and communicate it to the President of Ukraine, People's Deputies of Ukraine, the Cabinet of Ministers of Ukraine, the Ministry of Defence of Ukraine, the Ministry for Veterans Affairs of Ukraine, the Ukrainian Parliament Commissioner for Human Rights and other state authorities.

1. The essence of the problem

The current legislation of Ukraine enshrines the special need of a child with a disability for parental care, support, treatment, rehabilitation, habilitation, development, stability and family support.

Before the start of military service, the state recognises this need through the mechanism of deferment from conscription during mobilisation for parents raising a child with a disability under the age of 18.

At the same time, after the start of military service, a similar life circumstance – participation in raising a child with a disability under the age of 18 – does not have the same legal significance when deciding the issue of a service member's discharge from military service.

As a result, a legal inconsistency arises: a child with a disability has the same legal status and the same needs, regardless of whether their father is a civilian or already in military service, but the scope of state guarantees for such a child actually changes depending on the status of one of the parents.

This approach is legally, socially and morally unacceptable.

A child does not cease to need the care, treatment, rehabilitation, stability, safety and involvement of both parents just because one parent has become a member of the military.

2. Legal assessment

We believe that the current wording of the eighth subparagraph of paragraph 3 of part twelve of Article 26 of the Law of Ukraine "On General Military Duty and Military Service", insofar as it makes the discharge from military service of a service member raising a child with a disability under the age of 18 contingent on the formal presence of another parent or other persons who are obliged to raise the child, does not comply with the system of constitutional, legislative and international legal guarantees for the protection of children with disabilities.

This provision appears to violate the principles of the rule of law, legal certainty, equality, non-discrimination, the best interests of the child, protection of the family, childhood, motherhood and parenthood, and also actually narrows the scope of state guarantees that Ukraine has already recognised for children with disabilities.

2.1. Conflict between Article 23 of the Law on Mobilization and Article 26 of the Law on Military Duty and Military Service

Paragraph 5 of part one of Article 23 of the Law of Ukraine "On Mobilization Preparation and Mobilization" recognises the right of women and men, guardians, custodians, adoptive parents and foster parents who are raising a child with a disability under the age of 18, to a deferment from conscription for military service during mobilisation. That is, before the start of military service, the state directly recognises: the very fact of raising a child with a disability under the age of 18 is a sufficient basis for a special state guarantee.

At the same time, after the start of military service, the eighth subparagraph of paragraph 3 of part twelve of Article 26 of the Law of Ukraine "On General Military Duty and Military Service" does not give this very status of a child with a disability an independent legal meaning. The possibility of discharging a service member from military service is not dependent on the needs of the child, not on the extent of care, not on the best interests of the child, but on the formal presence or absence of the other parent or other persons who are obliged by law to raise the child.

Therefore, the same life circumstance – participation in raising a child with a disability under the age of 18 – has different legal consequences depending only on whether the child's father is still a civilian or has already been mobilised and is serving in the military.

This creates a regulatory inconsistency between the two laws and violates the principle of legal certainty: the state cannot recognise in one law that a child with a disability needs a special guarantee of parental care, and in another – actually deny a similar guarantee after starting military service.

The legal position cannot be such that before mobilisation the status of a child with a disability is of decisive importance, and after mobilisation this same status loses its independent legal significance.

2.2. Violation of the principle of rule of law and legal certainty – Article 8 of the Constitution of Ukraine

According to Article 8 of the Constitution of Ukraine, the principle of the rule of law is recognised and valid in Ukraine, the Constitution of Ukraine has the highest legal force, and laws and other normative legal acts must be adopted on the basis of the Constitution of Ukraine and correspond to it.

The principle of the rule of law includes, in particular, the requirement of legal certainty, consistency and predictability of legal regulation.

The current wording of Article 26 of the Law of Ukraine "On General Military Duty and Military Service" fails to meet these requirements, since one and the same circumstance – participation in raising a child with a disability – is recognised as a sufficient basis for a state guarantee under one legal regime, while under another its significance is effectively negated.

The state recognises the need of a child with disabilities for parental care before mobilisation, but does not recognise it after mobilisation.

Such inconsistency undermines legal certainty, creates an uneven application of state guarantees, and effectively makes the legal status of a child with a disability dependent on when their father was mobilised.

2.3. Violation of Article 3 of the Constitution of Ukraine

Article 3 of the Constitution of Ukraine defines that the individual, their life and health, honour and dignity, inviolability and security are recognised in Ukraine as the highest social value, and human rights and freedoms and their guarantees determine the content and direction of the state's activities.

In the case of children with disabilities, it is not about a formal advantage for one of the parents, but about the real needs of the child: care, treatment, rehabilitation, habilitation, safety, development, stability and support of the family.

When the current provision does not focus on the needs of the child, but on the formal presence of another person who is obliged by law to raise it, the state deviates from the constitutional obligation to direct its activities to protect the life, health, dignity and safety of a person.

This especially applies to children who, due to a disability, have an increased dependence on the constant involvement of their parents and cannot independently compensate for the loss of one of the main caregivers.

2.4. Violation of the principle of equality and non-discrimination – Articles 21 and 24 of the Constitution of Ukraine

Article 21 of the Constitution of Ukraine stipulates that all people are free and equal in their dignity and rights, and human rights and freedoms are inalienable and inviolable. Article 24 of the Constitution of Ukraine establishes the equality of citizens before the law and prohibits privileges or restrictions on various grounds.

The current wording of Article 26 of the Law of Ukraine "On General Military Duty and Military Service" actually creates a different level of state protection for children with the same legal status.

A child with a disability, whose father has not yet been mobilised, has a state guarantee in the form of the right of one of the parents to deferment in accordance with paragraph 5 of part one of Article 23 of the Law of Ukraine "On Mobilization Preparation and Mobilization".

On the other hand, a child with a disability, whose father is already in military service, does not have a similar guarantee, if there is formally another parent or other persons who are obliged to raise them.

That is, two children with the same status – a child with a disability under the age of 18 – receive a different level of state protection depending on a circumstance that does not concern the child and is beyond the child's control: whether their father was mobilised.

This appears to discriminate against a child with a disability due to family and legal circumstances related to the status of one of the parents.

This is exactly what the representative of the National Assembly of People with Disabilities of Ukraine drew attention to: the fate of a child with a disability depends on whether their father was mobilised; the status of a child with a disability and their need for constant care do not "disappear" after the mobilisation of one of the parents.

2.5. Narrowing the content and scope of existing guarantees – Article 22 of the Constitution of Ukraine

Article 22 of the Constitution of Ukraine provides that constitutional rights and freedoms are guaranteed and cannot be revoked, and when adopting new laws or making changes to existing laws, it is not allowed to narrow the content and scope of existing rights and freedoms.

Ukrainian legislation already recognises that a child with a disability is a separate category of children that needs additional state protection, special care and support.

When the state, through Article 23 of the Law of Ukraine "On Mobilization Preparation and Mobilization", recognises the right to deferment for parents raising a child with a disability under the age of 18, it recognises not only the right of an adult, but above all the child's need for parental care.

However, the current wording of Article 26 of the Law of Ukraine "On General Military Duty and Military Service" after the start of military service actually narrows this guarantee: the same status of a child is no longer a sufficient legal fact to protect their needs.

Thus, the special state guarantee, recognised by the legislator for children with disabilities before mobilisation, actually loses its effect after the mobilisation of one of the parents.

This means narrowing the content and scope of guarantees for a separate group of children with disabilities – those whose parents have already been mobilised or are serving in the military.

2.6. Violation of constitutional guarantees of protection of family, childhood, motherhood and parenthood – Articles 51 and 52 of the Constitution of Ukraine

Article 51 of the Constitution of Ukraine establishes that family, childhood, motherhood and parenthood are protected by the state. Article 52 of the Constitution of Ukraine enshrines the equality of children in rights.

The current provision actually reduces the participation of the father of a child with a disability to secondary or optional, if formally there is a mother or other person who is legally obliged to raise the child.

This approach does not correspond to the content of the constitutional protection of parenthood and childhood.

Parenthood is not only a legal status and not only a maintenance obligation. In the case of a child with a disability, it is also the day-to-day involvement in care, treatment, rehabilitation, habilitation, education, living, safety and emotional support.

This contradicts the constitutional duty of the state to protect not only motherhood, but also fatherhood, as well as to ensure equality of rights for children.

2.7. Martial law cannot be a universal excuse – Article 64 of the Constitution of Ukraine

We are aware that Ukraine is facing a full-scale war, and ensuring defence capability is the duty of the state.

At the same time, Article 64 of the Constitution of Ukraine directly establishes that even under conditions of martial law or a state of emergency, the rights and freedoms provided for, in particular, by Articles 24, 51 and 52 of the Constitution of Ukraine cannot be restricted.

Therefore, martial law cannot be a universal justification for narrowing the guarantees of equality of children, protection of family, childhood, motherhood and parenthood.

If the state considers that the restriction of a certain guarantee is necessary for reasons of defence, such a position must be specific, supported by legal reasoning, proportionate and statistically justified.

A general reference to martial law cannot justify a situation where children with the same legal status receive different levels of state protection.

2.8. Non-compliance with Article 26 of the Law of Ukraine "On Protection of Childhood"

Article 26 of the Law of Ukraine "On Protection of Childhood" explicitly prohibits discrimination against children with disabilities and children with mental or physical disabilities. The same article establishes special state guarantees for children with disabilities, in particular, the creation of necessary conditions for a full life and development, provision of material assistance, specialised medical, psychological and other support.

The current wording of Article 26 of the Law of Ukraine "On General Military Duty and Military Service" does not take into account this special legal status of a child with a disability when deciding the issue of the discharge of a service member from military service.

As a result, a child with a disability is effectively equated with a child who does not have such a status: what is decisive is not the disability, not the extent of the child's needs, not the need for special care, but only the formal presence of another person who is obliged to raise the child.

This approach contradicts the very logic of Article 26 of the Law of Ukraine "On Protection of Childhood", which establishes a higher level of state protection for children with disabilities, rather than a formal one.

2.9. Non-compliance with the Family Code of Ukraine

Article 141 of the Family Code of Ukraine establishes that the mother and father have equal rights and responsibilities towards the child, regardless of whether they were married to each other.

Article 150 of the Family Code of Ukraine imposes on parents the responsibilities of raising a child, taking care of its health, physical, spiritual and moral development, and also provides that parental rights cannot be exercised contrary to the interests of the child.

The current wording of Article 26 of the Law of Ukraine "On General Military Duty and Military Service" actually violates the balance of equal participation of mother and father in the performance of parental responsibilities for a child with a disability.

The formal presence of the mother does not mean that the father's participation loses legal, practical or vital significance for the child.

On the contrary, in the case of a child with a disability, the involvement of both parents is often a necessary condition for stable care, treatment, rehabilitation, habilitation, education, development and safety.

2.10. Violation of the Convention on the Rights of the Child

Ukraine is a party to the Convention on the Rights of the Child.

Article 2 of the Convention prohibits discrimination against a child, in particular depending on the status of their parents or other circumstances.

Article 3 of the Convention establishes that in all actions concerning children, the best interests of the child must be a primary consideration.

Article 23 of the Convention recognises the right of a child with a disability to special care and assistance that corresponds to the child's condition and the circumstances of those responsible for the child's care.

The current provision fails to meet these standards because:

- does not put the best interests of the child in the centre;
- does not assess the actual condition of the child and the extent of care;
- does not take into account the position of the person who actually provides care for the child;
- allows a different level of protection for the child depending on the status of the father as a civilian or a service member.

2.11. Violation of the Convention on the Rights of Persons with Disabilities

Ukraine is also a party to the Convention on the Rights of Persons with Disabilities.

Article 5 of the Convention enshrines the principle of equality and non-discrimination, as well as the right of persons with disabilities to equal and effective legal protection.

Article 7 of the Convention establishes that in all actions regarding children with disabilities, the best interests of the child must be a primary consideration.

Article 23 of the Convention provides for the right of children with disabilities to equal rights in relation to family life and the obligation of the state to provide children with disabilities and their families with adequate support.

The current wording of Article 26 of the Law of Ukraine "On General Military Duty and Military Service" does not ensure equal and effective legal protection of children with disabilities, as it creates a situation in which one part of children with disabilities receives a state guarantee of parental care before mobilisation, and the other part loses a similar guarantee after the mobilisation of one of the parents.

This does not meet the state's obligation to provide support not merely to the child with a disability in formal terms, but also to their family as an environment in which the child receives care, development, rehabilitation, habilitation and protection.

2.12. Legal Conclusion

Therefore, the current wording of the eighth subparagraph of paragraph 3 of part twelve of Article 26 of the Law of Ukraine "On General Military Duty and Military Service", insofar as it does not recognise the independent legal significance of the status of a child with a disability after the start of military service of one of the parents, appears inconsistent with the following norms:

- Article 3 of the Constitution of Ukraine – in terms of the state's duty to direct its activities to the protection of the individual, their life, health, dignity and security;
- Article 8 of the Constitution of Ukraine – in terms of the principle of rule of law and legal certainty;
- Article 21 of the Constitution of Ukraine – in terms of equality of people in dignity and rights;
- Article 22 of the Constitution of Ukraine – regarding the inadmissibility of narrowing the content and scope of the existing ones rights and guarantees;
- Article 24 of the Constitution of Ukraine – in terms of equality before the law and prohibition of discrimination restrictions;
- Article 51 of the Constitution of Ukraine – in terms of protection of family, childhood, motherhood and parenthood;
- Article 52 of the Constitution of Ukraine – in terms of children's equality of rights;
- Article 64 of the Constitution of Ukraine – regarding the inadmissibility of restrictions on the rights provided for by Articles 24, 51 and 52 of the Constitution of Ukraine, even in the conditions of martial law;
- Article 26 of the Law of Ukraine "On Protection of Childhood" – in the part prohibiting discrimination against children with disability and guarantees of their full life and development;
- Articles 141 and 150 of the Family Code of Ukraine – in terms of equality of rights and obligations of mother and father regarding the child and the parents' duty to take care of the child's health and development;
- articles 2, 3 and 23 of the Convention on the Rights of the Child – in terms of prohibition of discrimination, priority the best interests of the child and the right of a child with a disability to special care;
- Articles 5, 7 and 23 of the Convention on the Rights of Persons with Disabilities – in terms of equality, non-discrimination, the best interests of children with disabilities and the right to support family life.

Thus, Draft Law No. 15057 should be considered not as the creation of a new benefit for military personnel, but as the necessary legislative elimination of a legal inconsistency, which already leads to an unequal level of state protection for children with disabilities.

The state has already recognised in paragraph 5 of part one of Article 23 of the Law of Ukraine "On Mobilization Preparation and Mobilization" that a child with a disability under the age of 18 needs a special guarantee of parental care. Therefore, after the mobilisation of one of the parents, the same status of the child cannot lose its legal significance.

Children with the same legal status should receive the same level of state guarantees regardless of whether one of their parents is a civilian or is already in military service.

It is because of this that Draft Law No. 15057 is necessary to restore legal certainty, ensure the equality of children with disabilities before the law, fulfil Ukraine's international obligations and protect the best interests of the child.

3. The best interests of the child

In all decisions affecting children, the best interests of the child must be the primary consideration. In the case of children with disabilities, these interests cannot be assessed abstractly or formally.

For many children with disabilities, appropriate care includes:

- constant supervision;
- treatment;
- taking medication;
- medical procedures;
- rehabilitation;
- habilitation;
- special food;
- physical support;
- transportation;
- communication with doctors, rehabilitation specialists, school, social services;
- organisation of documents;
- psychological support;
- stable and predictable family environment.

In many families, this level of care cannot be provided safely, stably and for a long time by the efforts of only one person.

The participation of the second parent in such families is not a matter of convenience for adults. This is a question of safety, stability of treatment, quality of rehabilitation, development of the child and preservation of the family.

4. Medical, rehabilitation, habilitation and functional assessment of the child's needs

During the expert meeting, it was separately emphasised that the rehabilitation of a child with a disability is not a one-time visit to a specialist and not only classes in a rehabilitation or correctional centre.

Rehabilitation and habilitation are continuous processes in which the main daily burden is carried out by the family.

It is especially important to distinguish between rehabilitation and habilitation.

Where rehabilitation aims to restore lost functions, habilitation is the formation of vital skills that a child with a disability did not have before. It is the habilitation for many children with congenital developmental disorders that determines whether the child will be able to be more independent, included in the life of the family, community, education and society.

For such children, it is not just about improving a single function or movement. It is about the child's participation in their own life: the ability to independently eat, dress, ask for help, play, move, study, interact with other children, participate in the life of the family and community.

A specialist can work with a child for several hours a week, but skills are not formed only during these hours. They are formed every day – during dressing, feeding, bathing, playing, walking, studying, household chores and ordinary everyday interaction.

That is why parents are not only accompanying persons. They are important members of the multidisciplinary team, without whose daily participation the rehabilitation and habilitation processes cannot be stable and effective.

For example, for a child with motor impairments, even a small action – independently moving a hand out of a sleeve while undressing or putting a hand into a sleeve while dressing – can be an important functional step towards independence. For such a skill to take hold, a child needs dozens of repetitions in natural life situations.

However, if one of the parents independently provides all care, living, treatment, food, transportation, documents, trips to specialists, other children in the family and implementation of recommendations, that parent is often forced to do everything for the child, because it is faster, safer and physically easier.

In such a situation, the child loses the opportunity to try and learn.

Less practice means slower skill development. Fewer opportunities to act independently mean greater dependence on outside help in the future.

Therefore, the involvement of the other parent is not just about helping the mother or other primary caregiver. This is a direct contribution to the child's development.

When a parent patiently waits for a child to perform a small action independently, helps the child hold a spoon, dress, play, go for a walk, follow the recommendations of specialists or try a new skill, that parent creates additional opportunities for learning, development and independence.

It also gives the other parent the opportunity to recover, sleep, take care of their own health, other children or household matters. This is important not only for the well-being of an adult. This directly affects the stability of the rehabilitation and habilitation processes of the child.

When the main caregiver is exhausted, the number of repetitions decreases, classes are missed more often, the recommendations of specialists remain unfulfiled, and the adult, due to lack of time and resources, begins to do everything instead of the child.

The child is the first to experience the consequences.

Childhood, development, skill building and the opportunity to participate in life cannot be put on hold until a time when it is easier for the family.

Therefore, family support, the resource of both parents and the possibility of their constant participation is not only a social issue and not only caring for adults. This is a necessary condition for continuous rehabilitation and habilitation of the child, their development, independence and full participation in society.

5. Mental health of mothers and children

The participants of the meeting paid special attention to the mental health of mothers and children in families where a child with a disability needs constant care, support, treatment, rehabilitation or habilitation.

When one parent is in the military, the other parent is often responsible for the entire burden of care: physical, medical, emotional, administrative, educational, rehabilitative, domestic, and financial.

This regime can last for months and years.

The mother or other primary caregiver often lives under conditions of chronic stress, without normal sleep, rest, the opportunity to heal, work, recover, or at least temporarily transfer care to another adult.

According to the data of the psychiatric and psychological community, announced during the expert meeting, critical states of emotional burnout, severe depressive disorders, high level of psychotraumatization, suicidal thoughts, intentions or even attempts are increasingly observed in mothers. This creates risks not only for the stability of care, treatment, rehabilitation, education, life and emotional safety of the child – it is a direct threat to the health and life of the mother and child.

A child with a disability needs not only the physical presence of an adult, but a stable, resourceful, caring and responsive adult nearby.

Therefore, the issue of Draft Law No. 15057 is also an issue of prevention of severe mental crises in families, prevention of bringing mothers to a state of critical exhaustion, protection of life and health of parents and children.

The state cannot ignore situations in which one parent defends the country in military service, while the other is effectively left alone with the 24/7 care of a disabled child, without adequate support systems, rest, and a real possibility of recovery.

That is why the mental health of mothers and children should be taken into account when evaluating Draft Law No. 15057 as one of the key arguments in favor of its support.

6. Care work, maternal exhaustion and gender injustice

Caring for a child with a disability is not a "mother's natural duty", not household help and not a normal parental burden.

It is the daily, often 24-hour physical, emotional, medical, administrative, logistical, educational and social work without which a child cannot receive adequate care, treatment, rehabilitation, habilitation, education, safety and support.

This work includes not only being close to the child. It includes getting up at night, monitoring the condition, feeding, changing clothes, hygiene, taking medication, medical procedures, carrying out the recommendations of specialists, accompanying doctors and rehabilitation centres, communicating with the school, social services, processing documents, finding funds, organising transport, responding to crises and constant responsibility for the life and condition of the child.

When one of the parents serves in the military, this entire burden in most cases actually falls on the other parent – most often on the mother.

Viewed in purely formal terms, the provision appears neutral: it speaks of the presence of "other persons who are obliged to raise the child." But in real life, this construction most often means one thing: if there is a mother, the state considers that the problem of care is solved.

This is a wrong and dangerous approach.

The presence of a mother does not mean the availability of unlimited physical, mental, financial and time resources. A mother also has a body, health, work, income, need for sleep, treatment, rest, recovery, social life, and the ability to not be driven to exhaustion.

When the state relies only on the formal presence of the mother or other parent, it actually does not see the actual extent of care work and transfers to one person the functions that in a normal system should be distributed between the family, social services, the medical system, educational institutions and the state.

In the case of a child with a disability, this burden cannot be compared with ordinary child care. It is a long, multi-stage and often exhausting process that can last for years: treatment, rehabilitation, habilitation, remedial classes, special care, constant support, adaptation of life, learning skills, control of behavioural or medical conditions, dealing with crises and daily struggle for small steps of development.

If this whole process is kept on one person, it inevitably leads to exhaustion. And the exhaustion of the mother is not only an adult problem. This is a direct risk for the child.

When the primary caregiver is awake, unable to receive treatment, unable to work or recover, there is an increased risk of missed procedures, disruption of rehabilitation, deterioration in quality of care, emotional disruption, social isolation of the family, and deterioration of the child's condition.

That is why this approach is not just formal. It is discriminatory in its consequences, because it actually transfers to one person – most often the mother – invisible, unpaid, round-the-clock and often overwhelming care work without due recognition, support and appreciation of the real resource of the family.

The father's participation in the life of a child with a disability cannot be considered as optional help for the mother.

A father is not an "assistant". A father is one of two parents who are of equal importance to the child's stability, development, safety, treatment, rehabilitation, habilitation and emotional well-being.

The participation of the father allows you to share not only physical actions, but also responsibility, decisions, night risings, trips, fear, crisis situations, financial burden and constant psychological stress.

For a child with a disability, the presence of a second parent can mean more regular rehabilitation, more repetition of skills, more stable care, timely access to a doctor, fewer risks to the mother's health, and more security in the family.

The state cannot at the same time recognise that a child with a disability needs special protection, and at the same time build a legal provision on the assumption that one mother is capable of unlimited, continuous and independent replacement of the entire support system.

If social services, respite, day care, affordable rehabilitation, crisis assistance and support for families in communities are insufficient, the state has no right to ignore the role of the other parent as a real participant in care.

That is why Draft Law No. 15057 should also be considered as a step to recognise care work as socially necessary, to overcome the gender-unfair shifting of the entire burden on mothers, and to protect a child with a disability through family support.

7. Social services and state responsibility

The participants of the meeting emphasised that in many communities of Ukraine, the support system for families raising children with disabilities remains absent or insufficient.

Often, families do not have real access to respite services, day care, crisis support, regular social support, affordable transportation, assistance services, comprehensive rehabilitation, and assistance with daily care.

Under such conditions, a formal reference to the presence of the other parent or other persons who are obliged to raise the child cannot be considered sufficient proof that the child's needs are actually provided.

The state cannot at the same time not provide an adequate system of social services – and at the same time believe that one person in the family is able to replace this system independently.

For many families, the second parent is the only source of support: a person who can take the child to the doctor, stay with the child during illness, help with physical care, provide trips to rehabilitation, give the other parent the opportunity to sleep, receive treatment, or solve household and administrative issues. When this resource is absent, the family is left alone with a burden that should be shared between the family, the community, social services, the medical system and the state.

This creates the risk of disruption of care, interruption of rehabilitation, deterioration of the child's condition, exhaustion of the primary caregiver, social isolation of the family and, in some cases, the child approaching institutional care simply because the family cannot physically cope with the burden.

That is why Draft Law No. 15057 should be considered not as a separate benefit for military personnel, but as a response to a significant gap in state support for families raising children with disabilities in wartime conditions. Because the real protection of a child with a disability requires a real family resource. And where the social services system cannot completely replace the participation of the second parent, the state has no right to ignore this participation as a legally significant circumstance.

If the state recognises the right of a child with disabilities to family life, care, development, rehabilitation and support, it must also recognise that these rights cannot be ensured only by the formal presence of one adult in the family.

8. The position of the Ministry of Defence of Ukraine and the need for its justification

We are aware of the needs of state defence, military service and the need to maintain and increase the combat capability of the Defence Forces of Ukraine.

At the same time, any limitation of rights and guarantees that concerns children with disabilities must be legally, factually and statistically justified.

General references to possible "excessive expansion of the range of service members who may be discharged from military service", "reduction of the number of personnel" or "negative impact on combat capability" cannot be considered sufficient justification without specific data, an assessment of the real scope of this category and an analysis of the proportionality of such a limitation.

If the Ministry of Defence of Ukraine objects to Draft Law No. 15057, such a position must contain answers to at least the following questions:

1. Does the Ministry of Defence of Ukraine have statistics on how many service members may actually be affected by Draft Law No. 15057?

2. If there are no such statistics, on what factual data are the statements about the risk of a significant or sudden outflow of military personnel based?

3. Was it taken into account that a significant part of parents of children with disabilities already have the right to deferment from mobilisation, and therefore Draft Law No. 15057 concerns a much narrower category?

4. Were cases taken into account when a child acquired the status of a child with a disability already after the mobilisation of one of the parents?

5. Does the Ministry of Defence of Ukraine recognise that the current provision creates a different level of state protection for children with the same legal status?

6. Is the Ministry of Defence of Ukraine ready to provide a written, legally and statistically substantiated position regarding Draft Law No. 15057?

We believe that without an answer to these questions, objections to Draft Law No. 15057 cannot be considered properly substantiated.

The question of the defence capability of the state cannot be pitted against the rights of children with disabilities without specific data, an analysis of proportionality and taking into account the best interests of the child.

The state has the right to assess risks to defence capability, but such an assessment cannot replace a legal analysis and cannot be based on the assumption that any expansion of guarantees for families of children with disabilities automatically creates a disproportionate risk for the Defence Forces of Ukraine.

That is why the position of the Ministry of Defence of Ukraine regarding Draft Law No. 15057 should be open, reasoned, supported by data and correlated with the rights of children with disabilities, and not reduced to a general objection.

9. Our Joint Position

We support Draft Law No. 15057 because it:

1. eliminates the regulatory inconsistency between the right to deferment before mobilisation and the right to discharge after the commencement of military service;

2. restores the independent legal meaning of the status of a child with a disability, which cannot depend on when exactly the father was mobilised;

3. ensures equal state protection of children with disabilities, regardless of the status of one of the parents – a civilian or a service member;

4. restores the balance between the state's defence needs and the state's duty to protect children with disabilities, without pitting these values against each other without proper justification;

5. complies with the principles of the rule of law, legal certainty, equality, non-discrimination and the best interests of the child;

6. is consistent with the state's constitutional duty to protect the family, childhood, motherhood and parenthood, as well as ensure equality of rights for children;

7. takes into account the actual extent of care that a child with disabilities needs: treatment, rehabilitation, habilitation, medical support, household help, training, development, safety and emotional support;

8. takes into account the real consequences for families when the entire care burden is entrusted to one parent: physical and mental exhaustion, disruption of rehabilitation, reduction of the child's development opportunities, social isolation and risk of crisis situations;

9. is not a mechanism of "mass demobilisation", as it concerns a specific category of families where there is a child with a disability under the age of 18 and where the father's participation is essential for ensuring the child's needs;

10. evaluates the situation through the rights of the child and not through the formal assumption that the presence of the other parent automatically means adequate care, resources, health, time, financial capacity and support.

We emphasize: a child with a disability must be at the centre of a legal assessment. Not the status of a service member in itself, not the formal presence of another person, but the needs of the child, their best interests, the right to care, development, rehabilitation, habilitation, family environment and equal state protection.

That is why Draft Law No. 15057 should be supported as a necessary step to restore legal certainty, eliminate the discriminatory consequences of the current provision and ensure an equal level of state guarantees for all children with disabilities.

10. Resolution and Call to State Authorities

The participants in this Resolution call on the Verkhovna Rada of Ukraine, its relevant committees, the Ministry of Defence of Ukraine, the Ministry for Veterans Affairs of Ukraine, the Cabinet of Ministers of Ukraine, the Ukrainian Parliament Commissioner for Human Rights, and other state authorities and officials, within their respective powers, to ensure the proper, urgent and expert consideration of Draft Law No. 15057.

We consider it necessary to:

1. support the further consideration and adoption of Draft Law No. 15057 as a legislative mechanism for eliminating the legal inconsistency that results in unequal state protection of children with disabilities;

2. consider Draft Law No. 15057 not as a matter of a separate benefit for service members, but as a matter of equal state protection of children with disabilities, respect for the best interests of the child, and fulfilment of the state's constitutional and international obligations;

3. take into account, when considering the Draft Law, the actual needs of children with disabilities, including the extent of care, treatment, rehabilitation, habilitation and social support required, the psychological burden on families, and parents' daily involvement;

4. ensure an expert legal, social and humanitarian assessment of the current provision, which creates different levels of state guarantees for children with the same legal status;

5. proceed from the principle that the child with a disability must be at the centre of the legal assessment, and that the formal presence of the other parent cannot automatically be regarded as evidence of sufficient care, resources, health, time, financial capacity and support;

6. where objections are raised to Draft Law No. 15057, require the relevant state authorities to provide specific legal, factual, statistical and proportionality-based reasoning, including the actual number of service members who may be affected by the Draft Law;

7. not pit the state's defence needs against the rights of children with disabilities without adequate data and legal analysis, since martial law does not remove the state's obligation to ensure equality of children's rights and protect the family, childhood, motherhood and fatherhood;

8. ensure an equal level of state guarantees for all children with disabilities, regardless of whether one of their parents is a civilian or is already serving in the military.

11. Endorsement of the Resolution

Civil society organisations, human rights initiatives, medical and rehabilitation professionals, experts, parent communities, representatives of service members' families raising children with disabilities, and other persons who support the need for equal state protection of children with disabilities may endorse this Resolution.

The signatories confirm their support for this joint position and consent to its submission to the Verkhovna Rada of Ukraine, the Ministry of Defence of Ukraine, the Cabinet of Ministers of Ukraine, the relevant committees of the Verkhovna Rada of Ukraine, the Ukrainian Parliament Commissioner for Human Rights and other state authorities, as well as to its public release.

12. List of Signatories

The list of persons and organisations that have endorsed this Resolution is maintained separately as a register of signatories.

The Resolution may be endorsed through written confirmation or by applying a qualified electronic signature to a statement of endorsement.

The register of signatories and statements of endorsement are annexes to the materials submitted together with this Resolution.

Date of adoption of the Resolution: 22 July 2026.